

APPROVED

By Stefanie Boster at 2:20 pm, Mar 08, 2022

City Contract # _____

PROFESSIONAL SERVICES AGREEMENT

for

Landfill Tent Building

THIS AGREEMENT is made and entered into this _____ day of _____, 2022, between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Engineering & Consulting Alliance, located at 445 Parsley Blvd, Cheyenne, Wy 82007 ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibits A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed within eighteen (18) months from Notice to Proceed from the City.

3. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

4. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

5. DRUG-FREE WORKPLACE

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the

Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the

- City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
 - c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
 - d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.

9. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of one hundred and fifty-nine thousand three hundred Dollars (\$159,300.00) as stated in Exhibit A.

10. MONTHLY REPORT

With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

11. INDEPENDENT CONSULTANT

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

12. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.

13. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

14. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

This Agreement shall be for a period of eighteen months. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and

- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto,

and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

21. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

22. ENTIRETY OF AGREEMENT

This Agreement consisting of six (6) pages, and Exhibit A consisting of four (4) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

City of Cheyenne

(SEAL)
Attest:

By: _____
Patrick Collins, Mayor

Kris Jones, City Clerk

Date: _____

Engineering & Consulting Alliance

By: _____

Print Name: _____

Date: _____

EXHIBIT A

Landfill Tent Building Project

1441 Happy Jack Rd
Cheyenne Wy

I. PROJECT DESCRIPTION

The Cheyenne City Landfill has a 31,500 square foot tent building that has sustained severe structural damage from ensuing windstorms. There is a total of sixteen trusses, spanning 150 feet, that will need to be removed and recycled. The Engineering and Consulting Alliance (ECA) will create and oversee a work plan to remove the existing fabric and trusses, without damaging the existing concrete pad and push walls. The Engineer will design and manage the construction of a new cost-effective structure to be placed on the existing foundation.

II. SCOPE OF WORK

The project consists of the following tasks:

Kickoff Meeting: The meeting will be held at the Landfill, between ECA the and the City of Cheyenne representative(s). The meeting should last no longer than one hour and will cover the project approach, schedule, and discussion regarding the deconstruction of the existing structure and construction of a conex metal structure.

Conceptual Design: Based on input from the Kick-Off Meeting, the Consultant sill develop a conceptual design for the conex tent and other supporting infrastructure.

Design and Specifications: Based off the kickoff meeting, the Consultant will design and prepare construction documents for the deconstruction of the existing tent building. Consultant will also design a new cost effective that can withstand sustained winds of 120 mph for a minimum of 12 hours.

The following should be considered:

- Consultant will collect all necessary data related to the project, including but not limited to, Surveying and Geotechnical work and any other work that would be necessary to produce the plans and specifications for the project.
- Design will be completed in three phases: 60%, 90% and Final. The 60% and 90% will include periods for City review. Conference call, or meeting, will be held after each review period.
- 60% Design Services: The services provided in the 60% design phase shall include the following:
 - Refinement of design scope based on results of Conceptual Design

- Finalize traffic flow diagrams and general arrangement drawings
- Finalize layout and site plans
- Develop outline specifications
- Develop opinion of probable cost based on the 60% design development that will have an estimate range of accuracy of +/- 30% of the future actual construction cost
- Complete Design Development documents for City review
- Design development review meeting or conference call
- 90% Design Services: The services provided in 90% design phase shall include the following:
 - Develop construction design drawings and specifications
 - Incorporate previous comments and review changes
 - Identify design components and finalize details
 - Construction document review conference call or meeting
 - Incorporate City and County standards for bidding documents as appropriate
 - Develop opinion of probable cost based on the 90% design development that will have an estimate range accuracy of +/- 20% of the future actual construction cost
 - Compile design and bidding documents into single package representing project manual and submit for City review.
- The Final design services will include the following:
 - Incorporate final comments and reviews on design document
 - Compile and submit Issues for Bid project manual.

It is assumed that work for this project will be bid as one project.

Bid Administration Support: The Consultant will support the City in the contractor bidding of the project. This will include:

- Participate in pre-bid meeting scheduled and organized by the City.
- Answer contractor and City questions that arise during the bidding process
- Review, at the City's direction, the lowest responsive bidder bid package and make a recommendation of award if the contractor is deemed capable of performing the work.

Construction Administration: Provide QC/QA and as-builts in electronic form for the project during the construction process.

General Consideration(s): The new cost-effective structure should meet all of Laramie County's and City building codes for a maintenance garage. The structure needs to be large enough to allow Landfill Heavy Machinery to easily enter and exit the building for repair operations.

III. SCHEDULE

Please provide a schedule with bid, indicating the timeframe in which this project can be completed. All work, to include construction of a new building shall be completed within eighteen (18) months from notice to proceed.

IV. BUDGET

Task	Budget
Bid Package Preparation	\$7,400.00
Construction Cost Estimate	\$11,600.00
Bid Administration	\$42,900.00
Construction Administration	\$97,400.00
Grand Total	\$159,300.00

Attached to this exhibit is the budget breakdown and schedule for this project. The table above is a reflection of said schedule. Work will be completed on a time and material basis not to exceed the total submitted budget amount, without written approval from the City.

V. PROPOSAL ASSUMPTIONS

In addition to the assumptions listed throughout the proposal above, the following is assumed as part of this project scope of work, schedule and budget.

1. Site geotechnical evaluation (including drilling and testing) services are part of this scope of work.
2. Topographical surveying is included in this scope of work.
3. Utility locating services are included in this scope of work.
4. Draft and final review will be provided to the City electronically. No printed copies of the plans are included in this proposal.
5. Review meetings will be held at the Landfill, consisting of City Representative(s) and by up to two of Consultants team members near the dates listed on the submitted schedule.
6. Bid administration support assumes preparation of two addendums and responses to four requests for information.
7. Construction Administration includes the Quality Control and Quality Assurance.

VI. ATTACHMENTS

- Landfill Tent Building Project – Breakdown and Schedule.

